

Form No:HCJD/C-121

ORDER SHEET**IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**Criminal Misc.No.3845-B-2013

Case No:

Nazar Hussain.

Versus

The State, etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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31-05-2013

Syed Waseem Halder Shah, Advocate for petitioner.
Mr. Muhammad Nawaz Shahid, DDPP for State.
Mr. Muhammad Hanif Raja, Advocate for the
complainant.
Syed Ali Raza, A.S.I. with record.

Nazar Hussain, the accused-petitioner seeks post
arrest bail in case FIR No.262-2012 dated 22.11.2012,
registered under Sections 302, 148/149, 109 & 324
PPC, at P.S. Tanda, Gujrat.

2. The allegation against the petitioner is that on
22.11.2012 at about 8-30 a.m. he along with his wife
Mst. Shabana Kausar abetted the co-accused, who
armed with firearms formed unlawful assembly in
furtherance of their common object launched murderous
assault upon the complainant party as a result of which
Muhammad Ilyas succumbed to the injuries, while
Shahid Abbas was seriously injured. The occurrence
was witnessed by Ghulam Abbas, Tajamal Abbas and
Ali Raza PWs. The motive behind the occurrence was
previous litigation between the parties.

3. The learned counsel for the petitioner has
contended that case against the petitioner is false and
concocted one; that the petitioner has been falsely

roped in this case by the complainant with the connivance of the police on the basis of previously enmity; that during the course of investigation, the petitioner was not found present at the spot; that the petitioner remained on physical remand and nothing has been recovered on his pointation; that it is alleged that the occurrence was taken place at the behest of the petitioner, who had commanded the incident, therefore offence under Section 109 PPC is attracted on the petitioner and injury caused to the deceased is attributed to Tajammal Hussain co-accused and said investigation has not been challenged before any forum; that the complainant also filed a private complaint against the accused-persons, but the accused persons were not summoned; that Aamir Shah is the main accused who is proclaimed offender, who admittedly made fire-shots hitting on the body of the deceased; that case of present petitioner is at par with the case of Mst. Farzana Kausar alias Shabana Kausar, who was attributed the role of instigation in the FIR, has admitted to bail by this Court on 12.02.2013, therefore, the petitioner is also entitled to the same relief on the basis of rule of consistency.

4. The petition has vehemently been opposed by the learned counsel for the complainant and it is expressed that the petitioner is nominated accused of the FIR, who had abetted his co-accused for the commission of offence; that the petitioner is the bone of contention of the occurrence and heinous offence has been committed by the accused-persons for the murder of deceased and injured to Shahid Abbas; that the matter was reported to the police on 22.11.2012, the day of occurrence, which is supported

by the ocular account of Ghulam Abbas, Tajjamal Abbas and Ali Raza in their statements under Section 161 Cr.P.C; that the motive is attributed to the present petitioner, which is established during the investigation as previous litigation is pending between the parties; that Tajammal Hussain co-accused son of the petitioner has committed the offence at the behest of the present petitioner; that the challan has submitted and charge has been framed, therefore, he is not entitled to the concession of bail. However, learned DDPP after going through the record has also informed that during the course of investigation, the general role is attributed to the present petitioner; that no doubt, the recovery has not been affected from the present petitioner, but according to the findings of the police vide case diary No.21 dated 29.12.2012, the petitioner is declared guilty under Section 109 PPC.

5. Arguments heard and record perused.

6. Admittedly, during the course of investigation, the Investigating Officer has reached at definite conclusion that present petitioner was not even present at the scene of occurrence at the relevant time and had provided behind the scene abetment to his co-accused for the commission of alleged offence and as such he has allegedly been recommended for the trial only in respect of an offence under Section 109 PPC. The prosecution itself had two versions vis-à-vis the present petitioner, first was of complainant party according to which he was present at the spot at the place of occurrence and second of investigating agency according to which he was not present at the spot and he was abetting his co-accused behind the scene. Such

considerations render the case against the accused one of further inquiry into his guilt. Even otherwise, Mst. Farzana Kausar, who attributed the role of instigation in the FIR has been admitted to bail by this Court on 12.02.2013, therefore, the petitioner is also entitled to the same relief on the basis of rule of consistency. Besides it, the vicarious liability will be seen by the learned trial Court after recording of evidence and appraisal thereof. In such circumstances, the petitioner is entitled to the concession of bail.

For the foregoing reasons, the instant petition is accepted and the petitioner is admitted to bail subject to furnishing his bail bonds in the sum of Rs.2,00,000/- with two sureties each in the like amount to the satisfaction of learned trial Court.

(Aalia Neelum)
Judge

Approved for Reporting.

Judge

*R/ousf
01/7/13

Blue slip verified.
3/6/2013